

DATA RETENTION AND DISPOSAL POLICY

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This document governs the establishment and maintenance of data retention and disposal at BAL system.

Bajaj Auto Limited, hereinafter referred to as “We” or “Us” or “Organization” or “BAL”, has created this policy to demonstrate its commitment to maintain privacy of its customers/data subjects by safeguarding their personal data.

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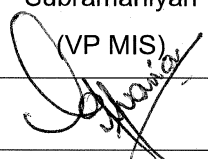
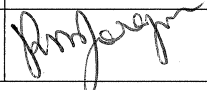
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1. Objective

The objective of this policy is to ensure that personal data is retained for the appropriate duration based on legal, regulatory, and business requirements, and are securely disposed of when no longer needed.

2. Overview

This policy provides guidance and standards for retaining customer personal data for the minimum necessary duration and ensuring secure deletion or destruction of personal data in compliance with applicable data privacy/protection regulations.

Please note that for the purpose of this policy, the use of “data” and “information” shall be considered synonymous and has been used interchangeably. For the purpose of this policy, the term personal data refers to customer personal data.

3. Scope

This policy applies to all activities, processes, systems, and personnel involved in the processing of customer personal data related to connected electric vehicles to ensure compliance with applicable data privacy/protection regulation in all personal data processing activities across Bangladesh, Brazil, Colombia, Greece, Indonesia, Kenya, Mexico, Nepal, Philippines, Portugal, Saudi Arabia, Spain, Sri Lanka, Thailand, Turkey, UAE.

Please refer Appendix c for country specific regulation. This appendix needs to be monitored every six months and any changes to the respective country specific privacy related regulation should be incorporated.

4. Exceptions

If any department or business function is unable to comply with any of the requirements outlined in this document, an exception must be obtained in advance in consultation with the Data Protection Officer (DPO) and CISO. All exceptions must be properly documented, clearly stating the rationale for the exception and identifying the associated risks.

These exceptions should be recorded in the ITSM tool and should not be seen as standard practice, but as specific deviations that have been carefully evaluated and approved. These exceptions may only be valid for a specific time limit. Post expiry, the exception needs to be re-evaluated/removed.

5. Policy

a. Personal data Retention and Destruction

Data Retention

- Departments, Business Units of BAL shall identify the types of data based on sensitivity and importance.
- Ensure clear retention periods are established for each data type. Some factors influencing retention periods are sectoral/industry specific compliance requirements, regulatory mandate, historic experiences with compliance activities etc.
- Retain each piece of data collected for the shortest permissible duration required to achieve the intended purpose and to enable data disposal measure.
- Regular backup shall be taken (with defined retention period) to prevent loss and facilitate recovery in-line with backup policy.
- Personal data at BAL shall be retained, stored, handled, and disposed of in accordance with the applicable data privacy/protection regulation.

Data storage

- **IT Infrastructure:** All categories of customer personal data (as defined in BAL's data classification policy), are stored and processed within the territory of India.
- **Storage Media:** Secure handling is mandated for all storage media containing confidential and personal data. This must align with the level of protection and access stipulated in BAL's data classification and labelling standard.

Data disposal/destruction:

- Data should be destroyed/archived when it exceeds the retention period or when it is no longer required for the original purpose it was collected for or to adhere to data subject rights request.
- Records are to be destroyed/archived only with the approval of the respective Department / Business Unit Head stated in the **"Data Retention Schedule Template"**.
- Once the decision is made to dispose the personal data, it shall be destructed to a degree equivalent to where the identity of the data subject cannot be derived.
- The method of disposal varies and depends upon the nature of the data, a medium hold.
- BAL may outline three media sanitization approaches for achieving data disposal i.e., Clearing, Purging, and Destroying described below:
 - I. Clearing:** The Clear method involves rewriting all user-accessible memory locations on a media using standard read/write commands. This process replaces existing data with new values, rendering it irretrievable and safeguarded against non-invasive data recovery approaches. In cases where overwriting is not feasible, performing a factory reset on devices is also regarded as a Clear method.
 - II. Purging:** It utilizes more advanced techniques for securely removing customer personal data. This can include overwriting, block erasure, or cryptographic

erasure, depending on the storage media used. Additionally, cryptographic erasure targets self-encrypting drives (SEDs) by erasing the Media Encryption Key (MEK), transforming data into ciphertext – encrypted information that remains indecipherable without the decryption key.

- III. **Destroying:** This approach uses a variety of methods, including shredding, disintegration, melting, and incineration, to physically annihilate the storage media, leading to the permanent destruction of the underlying data. For example, hard drives, USB drives, or any physical media storing customer Personal data, such as contact details, service preferences, or warranty information, will be physically destroyed using methods like shredding, disintegration, or incineration. This ensures that customer data is unrecoverable and permanently removed from any retired or decommissioned devices.

Refer to the below indicative **Data destruction matrix** for the types of storage media (wherever applicable) and their destruction techniques.

Storage media	Clear	Purge	Destroy
Paper based	NA	NA	Shred using Shredders
Cloud	Delete user files, disable accounts, clear metadata	Overwrite or encrypt files before deletion	NA
SSDs (Solid State Drives), HDDs	Overwrite and verify	Use any of these methods: • Cryptographic erase • Block erase	Use standard physical destruction methods like Crushing, Disintegration, Melting (Incineration), Degaussing (for HDDs)
USB Removable Media	Overwrite and verify	NA	Use standard physical destruction methods like Shredding, Disintegration, Melting (Incineration)

The method of data destruction or disposal shall be adopted on case-to-case basis by BAL's IT Department and Senior Management in consultation with the required departments. Sufficient documentation and justification shall be maintained by BAL for adopting a method of Personal data disposal / destruction.

6. Data Retention and Destruction System Configuration

BAL is responsible for accurately recording the collection and processing of personal data. The system configuration for data retention and destruction should specify that information systems are designed to track and document key events such as the date of personal data collection, creation, updates, deletions, and archiving, all in accordance with an established record retention schedule. These configurations are crucial in ensuring that data is managed effectively throughout its lifecycle, from collection to secure disposal, and that it aligns with regulatory requirements for applicable data privacy/protection regulation.

7. Review Frequency

This document is subject to annual review or earlier if there are changes in the business environment or applicable data privacy/protection regulations. Any updates to this document will be recorded at the beginning of the document.

8. Appendix

a. Data Retention Schedule Template

Please refer Data Retention Schedule Template excel sheet

b. Definitions

- **Data Subject:** A data subject is a natural person whose personal data is collected, stored, or processed.
- **Personal data:** Any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors.
- **Processing:** Processing means any operation or set of operations which is performed on Personal data or on sets of Personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, erasure, or destruction.
- **Customer:** A customer is a person who buys goods or services from another business
- **Archive:** A designated area or facility (e.g., cabinet, room, building or computerized system) for the secure storage and retention of records and materials.
- **Data Retention:** The process of storing Personal data for a specified period to fulfil legal, contractual, or business purposes.
- **Data Disposal:** The secure and irreversible removal or destruction of personal data when it is no longer necessary or when requested by the data subject.

****NOTE:** The definitions listed above may vary as per the scope of the document. Please refer the Country specific requirement sheet: Definitions for specific country.

c. Applicable Regional specific laws

Below is a list of the countries within scope and their corresponding data protection regulations. Please refer the detailed requirements of each country in country law comparison excel sheet.

S. No.	Country	Regulation
1	Thailand	Personal data Protection Act 2019 ('PDPA')
2	Sri Lanka	Personal data Protection Act
3	Nepal	Privacy Act 2075 (2018);
4	Bangladesh	The Data Protection Bill, 2023 (Draft)
5	Indonesia	The Personal data Protection Law, 2022 (PDPL)
6	Saudi Arabia	1. Personal data Protection Law (PDPL) 2021 2. Personal data Protection Interim Regulations (PDPIR)
7	UAE	UAE Federal Decree-Law No. 45 of 2021 on the Protection of Personal data
8	Mexico	The Federal Law on the Protection of Personal data held by Private Parties – 2010
9	Turkey	Law on the Protection of Personal data No. 6698 dated April 7, 2016 (LPPD).
10	Kenya	Data Protection Act (DPA), 2019
11	Colombia	Law 1581 of 2012 (General Personal data Protection Law)
12	Philippines	The Data Privacy Act of 2012(DPA)
13	Brazil	Law No. 13.709 of 14 August 2018, General Personal data Protection Law ('LGPD')
14	Greece	The General Data Protection Regulation (GDPR) 2018
15	Portugal	
16	Spain	